GOV•UK

UK Visas and Immigration

Guidance

Working or volunteering in the UK while an asylum case is considered

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This publication is available at https://www.gov.uk/government/publications/working-whilst-an-asylum-claim-is-considered/working-in-the-uk-whilst-an-asylum-case-is-considered

Overview

When you claim asylum in the UK, you are not normally allowed to work whilst your claim is being considered. You are instead provided with accommodation and support to meet their essential living needs if you would otherwise be destitute.

There are limited circumstances where you may apply for permission to work, whilst you are waiting to find out if you will be given protection status.

We do encourage volunteering whilst your claim is being considered at any stage of the process and you do not need to apply to the Home Office. Volunteering involves spending time, unpaid, doing something that aims to benefit the environment or someone (individuals or groups). By volunteering for a charity or public sector organisation, you can support your local community, and this will also help you're your integration if you are granted protection status in the UK.

Eligibility

You may be able to apply for permission to work while you are waiting to find out if you will be given protection if:

- your claim has been outstanding for more than 12 months and you were not responsible for any delay in us making a decision on your application; or if
- your asylum application was refused, you can ask for permission to work if you have sent us more asylum-based pieces of evidence (further submissions) which are more than 12 months, and you were not responsible for any delay in us making a decision on your application.

If you had been given permission to work as part of another UK visa, then as long as your application for asylum was made in time (while the original visa was still valid) you will usually be allowed to continue to work.

If you apply for asylum out of time (when you have no current visa permission in the UK), then the permission to work you had under your previous visa ended when your visa expired so you can no longer work.

Dependants

Your dependants are not eligible to apply for permission to work unless they have also made an asylum claim in their own right.

Children under the age of 18 cannot be given permission to take up employment. However, unaccompanied asylum-seeking children or children dependent on their parents are entitled to access the education system until they reach 18 years of age whilst their claim is being considered. They are also able to take part in work experience placements or training if that forms part of their education.

How to apply

Apply using form PTW1 (https://www.gov.uk/government/publications/working-whilst-an-asylum-claim-is-considered).

Send the form to the permission to work team.

> Permission to Work Team
> Level 0
> Capital Building
> Old Hall Street
> Liverpool
> L3 9PP

Email: AsylumPTW@homeoffice.gov.uk for asylum claims or FurthersubmissionsPTW@homeoffice.gov.uk further submissions.

When submitting your application form:

- you must complete all fields in full or your application for permission to work may be rejected.
- you must provide a copy of your Application Registration Card
- you must provide any relevant supporting evidence such as previous permission to stay or outstanding appeal and any proof to mitigate any delay you may have caused to the consideration of your claim including any serious illness or medical issue, and other relevant documents

- you must also make sure to clearly state whether the application relates to an asylum claim or further submissions

> You must only complete and send the form to us once. Duplicate copies of the same form may delay processing your application and could result in a rejection.

Fees

There are no fees for making an application for permission to work.

Getting a decision

You will be contacted if your application is complex and will take longer, for example:

- your supporting documents need to be verified.
- we require further information.

If your application is rejected and you think that decision might be wrong, you can apply again by completing the application form and providing further evidence as to why you should be granted permission to work.

What you will get

If you are granted permission to work you will be notified through a letter, letting you know the relevant details attached to your grant including to contact the Department for Work and Pensions to apply for a national insurance number (https://www.gov.uk/apply-national-insurance-number).

You will be able to apply for employment in roles on the Immigration Salary List only.

A grant of permission to work does not allow you to:

- find employment in jobs not on the Immigration Salary List.
- be self-employed.
- engage in any business or professional activity.
- apply for public funds (benefits) and pensions.

Each time you find employment, you must contact Migrant Help (https://www.migranthelpuk.org/) with your employment details so that a review of your eligibility for and level of asylum support can be conducted. Failure to do so will result in any support being discontinued.

Application Registration Card

Your Application Registration Card (ARC) is evidence that you have submitted an asylum claim in the UK. If you have been granted permission to work, you should return your ARC to the address below. You will be issued with a new ARC confirming your permission to work.

> Permission to Work Team
> Level 0
> Capital Building
> Old Hall Street
> Liverpool
> L3 9PP

If you have any issues with your ARC including errors on work remarks, please use the online ARC enquiry form (https://www.gov.uk/government/publications/application-registration-card-arc-enquiry) to contact the Home Office.

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